UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF MICHIGAN
SOUTHERN DIVISION

AYANNA GOOGLE,
Plaintiff,
v.
CALHOUN COUNTY, a municipal corporation, Sheriff STEVEN HINKLEY, in his individual and official capacities, and sheriff's deputies RUBEN RANGEL, GERALD NOSTRANT, DAVID VADEN, TEIMKA IRVING, WILLIAM HUFF, JAMES HAMILTON, DONOVAN SLEDGE, JESSE EASTIN, TOBIAS KOENIG, MICHELLE LATTA, VALLEN CAMPBELL, and ERIC STEBLETON, each in their individual capacities,
Defendants.

Case No. _____
Hon. _____

COMPLAINT AND DEMAND FOR JURY TRIAL

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COMPLAINT AND DEMAND FOR JURY TRIAL

Now comes the Plaintiff, AYANNA GOOGLE, by and through counsel, GOODMAN HURWITZ & JAMES, P.C., and, for her Complaint, states as follows:

JURISDICTION AND VENUE

1. Plaintiff brings this action under the Fourth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983, and the laws of the State of Michigan, seeking compensatory and punitive damages.

2. This Court has subject matter jurisdiction over the federal claims pursuant to 28 U.S.C. §§ 1331 and 1343(a)(3)-(4), and supplemental jurisdiction over the state claims, arising from the same nucleus of operative fact, pursuant to 28 U.S.C. § 1367(a).

3. Venue is proper pursuant to 28 U.S.C. § 1391(b) because all of the events giving rise to the allegations herein occurred in this District.

PARTIES

4. Plaintiff AYANNA GOOGLE is a resident of Kalamazoo County, Michigan.

5. Defendant CALHOUN COUNTY is and was a municipal corporation organized under the Constitution and laws of the State of Michigan. At all times relevant hereto, it is and has been authorized by law to maintain and operate the Calhoun County Correctional Facility ("CCCF") pursuant to MICH. COMP. LAWS § 45.16.

6. By and through its official CCCF policymaker acting in his official capacity, Defendant HINKLEY, Defendant CALHOUN COUNTY promulgated and implemented the policies, customs and practices, written and unwritten, of the CCCF with regard to the events giving rise to the cause of action herein.

7. Defendant STEVEN HINKLEY, acting individually and in his official capacity, is and was, at all relevant times, the Sheriff of Calhoun County and official policymaker for the CCCF pursuant to MICH. COMP. LAWS § 51.75, and was directly involved in the adoption, retention, and/

or promulgation of the customs, policies and practices giving rise to the causes of action herein. He is sued in his individual, supervisory and official capacities.

8. Defendant RUBEN RANGEL, acting individually and within the scope of his authority, was at all relevant times, a sheriff's deputy assigned to the CCCF. He is sued in his individual capacity.

9. Defendant DAVID VADEN, acting individually and within the scope of his authority, was at all relevant times, a sheriff's deputy assigned to the CCCF. He is sued in his individual capacity.

10. Defendant TEIMKA IRVING, acting individually and within the scope of her authority, was, at all relevant times, a sheriff's deputy assigned to the CCCF. She is sued in her individual capacity.

11. Defendant WILLIAM HUFF, acting individually and within the scope of his authority, was, at all relevant times, a sheriff's deputy assigned to the CCCF. He is sued in his individual capacity.

GENERAL ALLEGATIONS

12. In the spring of 2022, Plaintiff learned that she had outstanding bench warrants in from the 10th District Court, located in the City of Battle Creek, County of Calhoun, State of Michigan, arising from alleged missed court dates in two traffic and property-related misdemeanor proceedings of which she had never been notified by her assigned public defender.

13. Despite Plaintiff's voluntary surrender to the court on June 27, 2022, following discovery of those warrants, the presiding magistrate declined to release Plaintiff on personal recognizance, and set her bail in the total amount of $500.00 via cash or surety.

14. Upon asking Plaintiff if she had enough money to pay the bond, and being informed that Plaintiff did not, the magistrate ordered that Plaintiff be taken into custody of the Calhoun County Sheriff's Office.

15. On information and belief, the magistrate did not state any reasons on the record for finding that Plaintiff's appearance, or the protection of the public, could not be assured in the absence of money bail, pursuant to MICH. CT. R. 6.106(E) and (F)(3).

16. Plaintiff was then arrested, transported, and confined to pretrial detention at the CCCF.

17. At booking, Plaintiff informed Defendants of her diagnosed affliction with anxiety and panic attacks, and the need for medication she was prescribed to manage those conditions, but CCCF staff nonetheless deprived her of medication throughout her duration of confinement.

18. During the booking process, Plaintiff informed CCCF staff that she suffered from hidradenitis suppurativa (HS), an inflammatory skin condition causing painful abscesses in sensitive areas, of which symptoms were observed by corrections staff during the booking process strip search.

19. Despite CCCF staff being put on notice of this condition, Plaintiff was allowed only one pair of indigent underwear, and one pair of pants that was two sizes too small, resulting in substantial exacerbation of her HS medical condition.

20. Upon observing Plaintiff's actions, Defendant VADEN shut off running water to the sink within Plaintiff's cell.

21. Defendants RANGEL, IRVING, and HAMILTON were aware of this unlawful act and took no steps to intervene, despite having the means and opportunity to do so.

22. Defendants RANGEL, VADEN, IRVING, and HAMILTON then gathered outside the door to Plaintiff's cell, preparing to make entry.

23. Seeing the gathering of officers outside the door to her cell and fearing, correctly, that she was about to be physically assaulted, Plaintiff began experiencing a panic attack and fell to her knees.

24. Immediately upon opening the door to Plaintiff's cell, Defendant RANGEL pointed his TASER at Plaintiff and shouted, "If you don't listen, you will be shot with a TASER."

25. Less than one second later, without giving any command for Plaintiff to listen to or comply with, Defendant RANGEL shot Plaintiff with two TASER probes into her shoulder area, causing Plaintiff to fall backwards against her bunk.

26. Defendants VADEN, IRVING, and HAMILTON observed this unlawful act and took no steps to intervene in the unjustified tasings or any of the excessive force that followed over the next several minutes, despite having the means and opportunity to do so.

27. Defendant IRVING then entered the cell, together with Defendants RANGEL, VADEN, and HAMILTON, and immediately began pressing into the carotid artery pressure point in Plaintiff's neck.

28. Defendants VADEN, RANGEL, and HAMILTON observed this unlawful act and took no steps to intervene in the excessive force, despite having the means and opportunity to do so.

29. Despite Plaintiff remaining on the ground and offering no resistance, Defendant RANGEL then resumed activating the TASER's electrical current only four seconds after completing the first electrical discharge.

30. Defendants then placed Plaintiff in handcuffs as she lay face-down on the floor of her cell.

31. While still handcuffed and being led, without resistance, on foot to the restraint chair outside her cell, Defendant RANGEL once again stunned Plaintiff with the TASER, causing her to lose balance before collapsing into the chair, where she was surrounded by Defendants RANGEL, NOSTRANT, VADEN, IRVING, HUFF, HAMILTON, SLEDGE, EASTIN, KOENIG, LATTA, and CAMPBELL.

32. Seconds later while handcuffed and seated in the chair, Defendant RANGEL deployed multiple drive-stuns to Plaintiff's legs.

33. Concurrently with Defendant RANGEL applying drive-stuns to her legs, Defendants IRVING and HUFF each struck Plaintiff with a peroneal nerve strike to her lower left and rights legs, respectively.

34. Defendants NOSTRANT, VADEN, IRVING, HUFF, HAMILTON, SLEDGE, EASTIN, KOENIG, LATTA, and CAMPBELL all observed these unjustified tasings and took no steps to intervene at any time, despite having the means and opportunity to do so.

35. Defendant IRVING then began holding Plaintiff's head down at her knees, obstructing her breathing, and forcing her to try to sit up in order to breathe.

CLAIMS FOR RELIEF

COUNT I

UNREASONABLE AND EXCESSIVE USE OF FORCE: FOURTH AND/OR FOURTEENTH AMENDMENTS (42 U.S.C. § 1983)

(Against All Defendants)

36. Plaintiff incorporates by reference all preceding allegations as though fully set forth herein.

37. At all times relevant hereto, Plaintiff was an arrestee or a pretrial detainee.

38. Under the Fourth Amendment and Fourteenth Amendment's Due Process Clause, arrestees and pretrial detainees are protected from being subjected to force that is excessive or unnecessary in light of the circumstances.

39. An arrestee and/or pretrial detainee need only demonstrate that the force purposely or knowingly used against her was objectively unreasonable, i.e., that it was more force than was reasonable under the circumstances.

40. The slight accumulation of water on the ground during Plaintiff's effort to wash the only change of underwear with which she was provided did not justify the need for a cell-extraction or tasing.

41. Defendant RANGEL's failure to provide any warning command with which Plaintiff could have complied prior to shooting her with his TASER gun, immediately following entry into her cell, further exposes that the TASER firing was objectively unreasonable.

42. In light of the secure and closed nature of the facility, the number of officers present, and complete lack of any violent resistance or threats on the part of Plaintiff, there was no need for the use of a TASER gun in order to subdue her.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Honorable Court grant Plaintiff the following relief against all Defendants, jointly and severally:

A. Adjudge, decree, and declare the rights and other legal relations of the parties to the subject matter in controversy in order that such declarations shall have the force and effect of final judgment and that the Court retain jurisdiction of this matter for the purpose of enforcing the Court's orders;

B. Award Plaintiff compensatory damages for the physical, emotional, and economic injuries she has suffered by reason of Defendants' unlawful conduct, in an amount that is fair, just and reasonable, as determined by the trier of fact;

C. Award Plaintiff punitive and exemplary damages, as to the natural person Defendants, to the extent allowable by law;

D. Award Plaintiff her costs and reasonable attorney fees pursuant to Fed. R. Civ. P. 54(d)(1) and 42 U.S.C. § 1988(b); and

E. Award Plaintiff any and all further relief that the Court finds equitable and just.

JURY DEMAND

Plaintiff demands a trial by jury on each and every one of her claims.

Dated: June 27, 2025

Respectfully submitted,

GOODMAN HURWITZ & JAMES, P.C.

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